



Date: 16/07/2025

Appointment Letter

Ishan Srivastava

Indore (M.P.)

We are pleased to promote you as a position of **MERN-Stack Developer** on 2025-04-14T00:00:00.000Zth at **Startappss Systems Private Limited**.

Your place of work will normally be from **Office** but if the exigencies in company's work so require, you may be posted in any part of the world where there are company's operations. Enclosed are your terms and conditions of services and we shall be grateful if you will confirm that these are acceptable to you by signing and returning the original documents. Your compensation, other benefits and general terms and conditions are mentioned in enclosed documents 1 & 2, which are enclosed with this letter.

Please also let us have the attached Employee Agreement, Non-Compete Agreement, Non-Disclosure Agreement, and the application for employment form duly completed along with 2 passport size photographs.

This offer is subject to your medical fitness, verification of your educational certificates, credit check and satisfactory references.

We look forward to your joining the company, and are sure that you will find this to be a significant career move.

Your Sincerely,

For **Startappss Systems Private Limited (Authorized – HR Department)**

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Enclosure: 1

ANNEXURE ‘A’: COMPENSATION DETAIL (Salary, applicable benefits and General Terms and Conditions)

Name: Ishan Srivastava
Designation: Junior Software Developer
Date of Joining: 15/07/2025

Salary Structure -

Component	Amount (INR)
Basic Salary	000.00
House Rent Allowance (HRA)	000.00
Conveyance Allowance	000.00
Medical Allowance	546542
Special Allowance	000.00
Total Salary	123123

Terms & Conditions -

1. Two months’ notice should be given by the employee before leaving the company along with resignation.
2. All salary dues shall be settled after successful completion of the notice period by attending the office and completing all pending tasks with proper handover of data/projects to the immediate senior or tech lead.
3. For any issue, you must inform the management in written form. Verbal communication shall not be entertained.
4. Leave shall be accepted only with the permission of the team leader. Approval/rejection of leave is at the sole discretion of the team leader, HR Manager, or Management. Leave cannot be claimed as a right.
5. You should inform your team leader before taking leave. You will be eligible for 1.5 Casual Leave (CL) per calendar month only after successful completion of the probation period.
6. Business tours or any office-related work shall take priority when applying for leave. Leaves will be granted based on work priorities.

Dear Ishan Srivastava,

Welcome to the dynamic, growing, and ethical team. Following is a list of instructions that must be followed by all of us during our working. Please read it carefully and follow these guidelines:

1. Undertake short-term or long-term projects to address a variety of issues and needs.
2. Meet with management or appropriate staff to understand their requirements.
3. Conduct situational and data analysis to identify and understand a problem or issue.
4. Present and explain findings to appropriate executives.
5. Provide advice or suggestions for improvement according to objectives.
6. Formulate plans to implement recommendations and overcome objections.
7. Arrange for or provide training to people affected by change.
8. Evaluate the situation periodically and make adjustments when needed.
9. Replenish knowledge of industry, products, and field.

Best of Luck!

For Startappss Systems Private Limited

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Authorized Signature

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Confidential Information

Due to your access to confidential information, all employees of Startappss Systems Private Limited must sign this agreement. **“Confidential information”** means any information of a secret or confidential nature relating to the workplace. Confidential information may include, but is not limited to, the following: trade secrets, proprietary information, customer information, customer lists, methods, plans, documents, data, drawings, manuals, notebooks, reports, models, inventions, formulas, processes, software, information systems, contracts, negotiations, strategic planning, proposals, business alliances, and training materials. In connection with being enrolled in Startappss Systems Pvt Ltd, I agree to the following:

I have read and understand the above definition of “confidential information.” I agree that I will not at any time, both during and after my employment in Startappss Systems, communicate or disclose confidential information to any person, corporation, or entity.

I further recognize and agree that while in Startappss Systems, I may become aware of nonpublic information of a personal nature about employees or associates, including, without limitation, actions, omissions, statements, or personally identifiable medical, family, financial, social, behavioral, or other personal or private information.

I will not disclose any such information that I learn or get to know to any other person or entity, unless required by applicable law or legal process.

EMPLOYEE

Mr. Ishan Srivastava

By: _____

COMPANY

Startappss Systems Private Limited

By: _____

Name: Nihal Jaiswal

Title: Director | CEO



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Employee Non-Disclosure and Confidentiality Agreement

This Employee Non-Disclosure and Confidentiality Agreement (this “Agreement”) is entered into as of the 15th July 2025 (the “Effective Date”) by and between Startappss Systems Private Limited (the “Company”), and Ishan Srivastava, an employee of the Company (the “Employee”). The above parties may be referred to singularly as a “Party” or collectively as the “Parties”. The Company hired Employee as Ishan Srivastava pursuant to the terms and conditions of that certain Employment Agreement executed between the Parties on the July 15th, 2025 (the “Employment Agreement”). In connection with the Employee’s duties under the Employment Agreement, the Company may disclose to the Employee certain confidential and proprietary information unique and valuable to its ongoing business operations. In consideration of the mutual promises set forth herein, the Parties agree as follows:

1. Confidential Information

The term “Confidential Information” as used in this Agreement shall mean any data, information, or knowledge disclosed by the Company to the Employee and not generally known to the public, including but not limited to:

- a. The Company’s business or operational plans or activities, existing or contemplated markets, advertising initiatives, methods of operation, products, or services;
- b. The Company’s suppliers or logistics data;
- c. The Company’s customer or supplier lists, cost of goods or services, profits and losses, budgeting, past or future sales, or financial information;
- d. The Company’s schematics, designs, software source or object code, compressed or uncompressed binaries, inventions, patents or patent applications, or illustrations;
- e. The Company’s existing or contemplated designs, models or platforms, formulas, research, notes, or analytical data;
- f. The Company’s management, board of directors, affiliates, suppliers, customers, employees, or third-party contractors;

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The Employee agrees to keep confidential all information disclosed by the Company as set forth in this Agreement. However, the confidentiality obligations shall not apply to any information that:

- a. If the information is or was received by the Employee from a third-party source which, to the best knowledge of the Employee, is or was not under a confidentiality obligation to the Company with regard to such information;
- b. If the information is disclosed by the Employee with the Company's prior written permission and approval;
- c. If the information is independently developed by the Employee prior to disclosure by the Company and without the use and benefit of any of the Company's Confidential Information;
- d. If the Employee is legally compelled by applicable law, by any court, governmental agency, or regulatory authority, or subpoena or discovery request in pending litigation, but only if, to the extent lawful, the Employee gives prompt written notice of that fact to the Company prior to disclosure so that the Company may request a protective order or other remedy, and the Employee may disclose only such portion of the Confidential Information which it is legally obligated to disclose.

4. Obligation to Maintain Confidentiality

With respect to Confidential Information, the Employee agrees to the following:

- a. The Employee agrees to retain the Confidential Information in strict confidence, to protect the security, integrity, and confidentiality of such information and to not permit unauthorized access to or unauthorized use, disclosure, publication, or dissemination of Confidential Information except in conformity with this Agreement.
- b. Confidential Information is and will remain the sole and exclusive property of the Company and will not be disclosed or revealed by the Employee, except
 - i. to other employees of the Company who have a need to know such information and agree to be bound by the terms of this Agreement, or
 - ii. with the Company's express prior written consent.
- c. The Employee agrees that, in the event the Employee must download, access, process, transfer, or otherwise communicate Confidential Information, the Employee shall comply with all applicable laws and regulations governing the export and re-export of data and information, and shall not, directly or indirectly, export or re-export any such Confidential Information in violation of those laws and regulations, including, without limitation, those prohibiting export or re-export to restricted countries or without the required governmental authorization.
- d. Upon termination of this Agreement, or upon the Company's request, the Employee shall ensure that all Confidential Information, along with any documents, memoranda, notes, and other writings or electronic records prepared by the Employee that include or reflect such Confidential Information, in the Employee's actual or constructive possession, are returned to the Company within twenty-four (24) hours.
- e. The obligation not to disclose Confidential Information shall remain in effect until two years following the Employee's termination of employment by the Company, except to the extent that such Confidential Information is excluded from the obligations of confidentiality under this Agreement pursuant to Paragraph 2 above.

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5. Disclaimer

There is no representation or warranty, express or implied, made by the Company as to the accuracy or completeness of any of its Confidential Information.

5. 1. Remedies

The Employee acknowledges that use or disclosure of any confidential and proprietary information in a manner inconsistent with this Agreement will give rise to irreparable injury for which damages would not be an adequate remedy. Accordingly, in addition to any other legal remedies which may be available at law or in equity, the Company shall be entitled to equitable or injunctive relief against the unauthorized use or disclosure of confidential and proprietary information. The Company shall be entitled to pursue any other legally permissible remedy available as a result of such breach, including but not limited to damages, both direct and consequential.

In any action brought by the Company under this Section, the Company shall be entitled to recover its attorney's fees and costs from the Employee.

6. Notices

All notices given under this Agreement must be in writing. A notice is effective upon receipt and shall be sent via one of the following methods: delivery in person, overnight courier service, certified or registered mail, postage prepaid, return receipt requested, addressed to the Party to be notified at the below address or by facsimile at the below facsimile number or, in the case of either Party, to such other party, address, or facsimile number as such Party may designate upon reasonable notice to the other Party.

7. Termination

This Agreement will terminate on the earlier of:

- a. the written agreement of the Parties to terminate this Agreement;
- b. the cessation of the Employee's employment; or
- c. one year from the date hereof.

8. Amendment

This Agreement may be amended or modified only by a written agreement signed by both of the Parties.

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10. Jurisdiction

This Agreement will be governed by and construed in accordance with the laws of the State of Madhya Pradesh, without regard to the principles of conflict of laws. Any dispute arising from this Agreement shall be resolved in the courts of the State of Madhya Pradesh.

11. No Offer or Sale

Nothing in this Agreement will be deemed a sale or offer for sale of Confidential Information nor obligate the Company to grant the Employee a license or any rights, by statute, common law theory of estoppel or otherwise, to Confidential Information.

12. Entire Agreement

This Agreement constitutes the entire agreement between the Parties and supersedes all prior or contemporaneous negotiations, discussions, or agreements, whether written or oral, regarding the subject matter hereof.

13. Miscellaneous

No joint venture, partnership, or agency relationship exists between the Employee, the Company, or any third-party as a result of this Agreement. This Agreement will inure to the benefit of and be binding on the respective successors and permitted assigns of the parties. Neither Party may assign its rights or delegate its duties under this Agreement without the other Party’s prior written consent. In the event that any provision of this Agreement is held to be invalid, illegal or unenforceable in whole or in part, the remaining provisions shall not be affected and shall continue to be valid, legal and enforceable as though the invalid, illegal or unenforceable parts had not been included in this Agreement. Neither Party will be charged with any waiver of any provision of this Agreement, unless such waiver is evidenced by a writing signed by the Party and any such waiver will be limited to the terms of such writing.

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IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the date first written above.

EMPLOYEE
Mr. Ishan Srivastava

By: _____

COMPANY
Startappss Systems Private Limited

By: _____
Name: Nihal Jaiswal
Title: Director | CEO



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